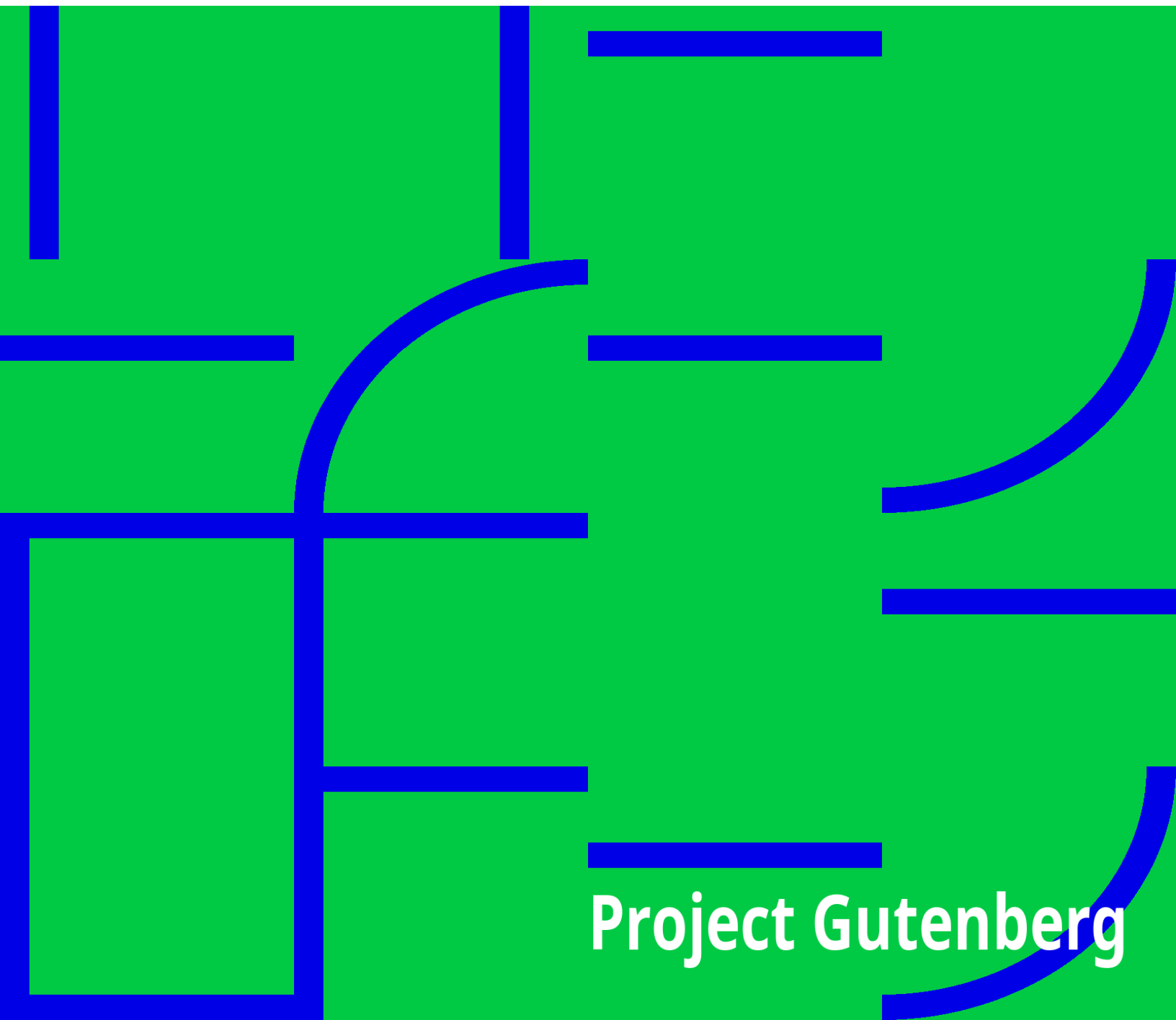


The Cuckoo Clock

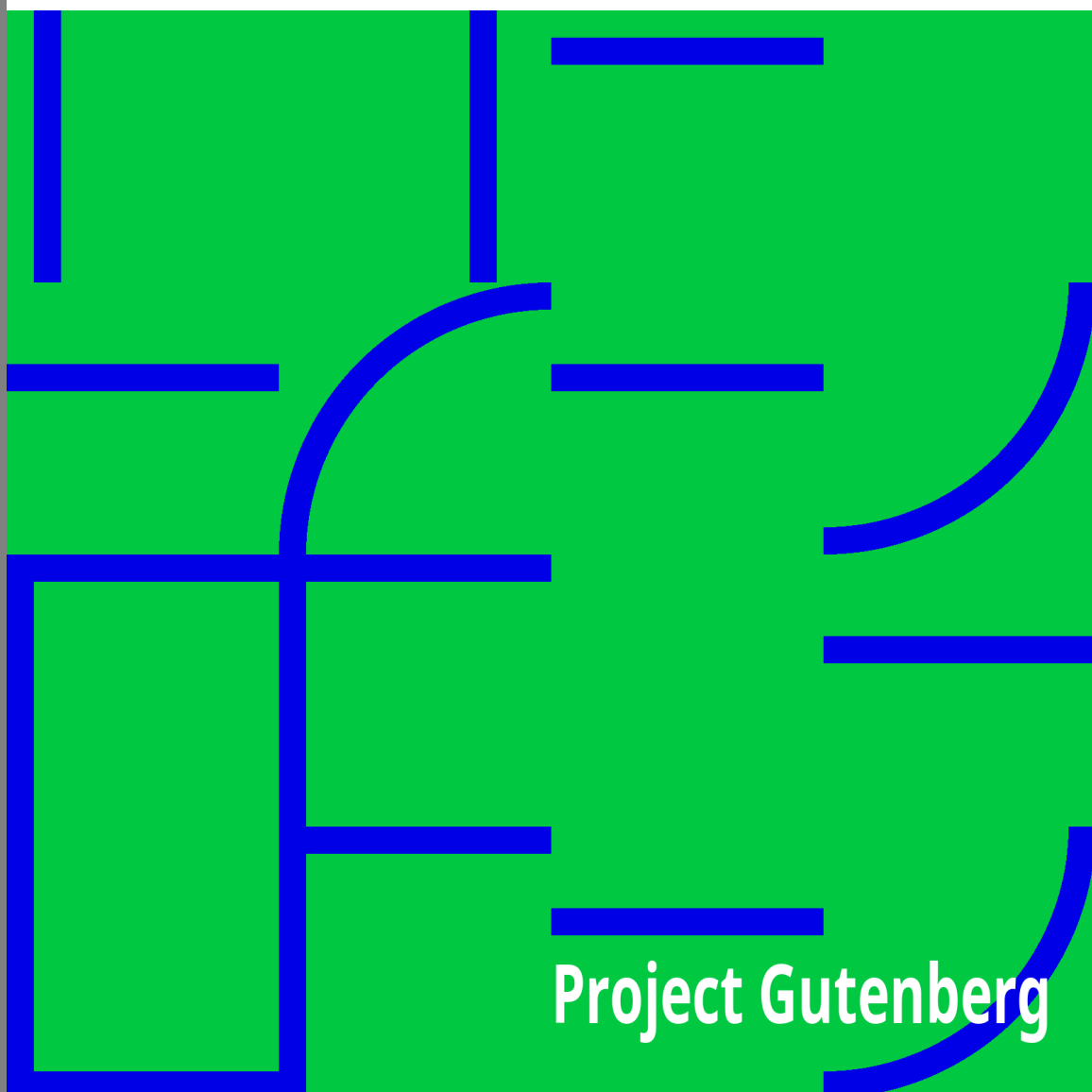
Wesley Barefoot

An abstract geometric pattern consisting of various blue lines of different thicknesses on a green background. The lines include straight horizontal and vertical segments, as well as curved segments that form arcs and partial circles. Some lines intersect to form a grid-like structure, while others are isolated or form open shapes. The overall effect is a complex, layered geometric design.

Project Gutenberg

The Cuckoo Clock

Wesley Barefoot



Project Gutenberg

The Project Gutenberg eBook of The Cuckoo Clock

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Cuckoo Clock

Author: Wesley Barefoot

Illustrator: Ernest Kurt Barth

Release date: August 6, 2009 [eBook #29623]

Language: English

Other information and formats: www.gutenberg.org/ebooks/29623

Credits: Produced by Greg Weeks, Stephen Blundell and the Online
Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK THE CUCKOO
CLOCK ***

THE CUCKOO CLOCK

BY WESLEY BAREFOOT

You know a murderer preys on your household—lives with you—depends on you—and you have no defence!

DEATH wore the seeming of a battered Chevrolet.

The child's scream and the screech of rubber on concrete knifed through two seconds of time before snapping, like a celery stalk of sound, into aching silence. The silence of limbo, called into being for the space of a slow heartbeat. Then the thud of running feet, the rising hubbub of many voices.

"Give her air!"

"Keep back. Don't try to move her."

"Somebody call an ambulance."

"Yeah, and somebody call a cop, too."

"I couldn't help it." It was the driver of the ramshackle Chevvie. "She fell off the curb right in front of me. Honest to God, it wasn't my fault."

"Got to report these things right away," said the grey-haired man beside him. "No cause to worry if you ain't to blame."

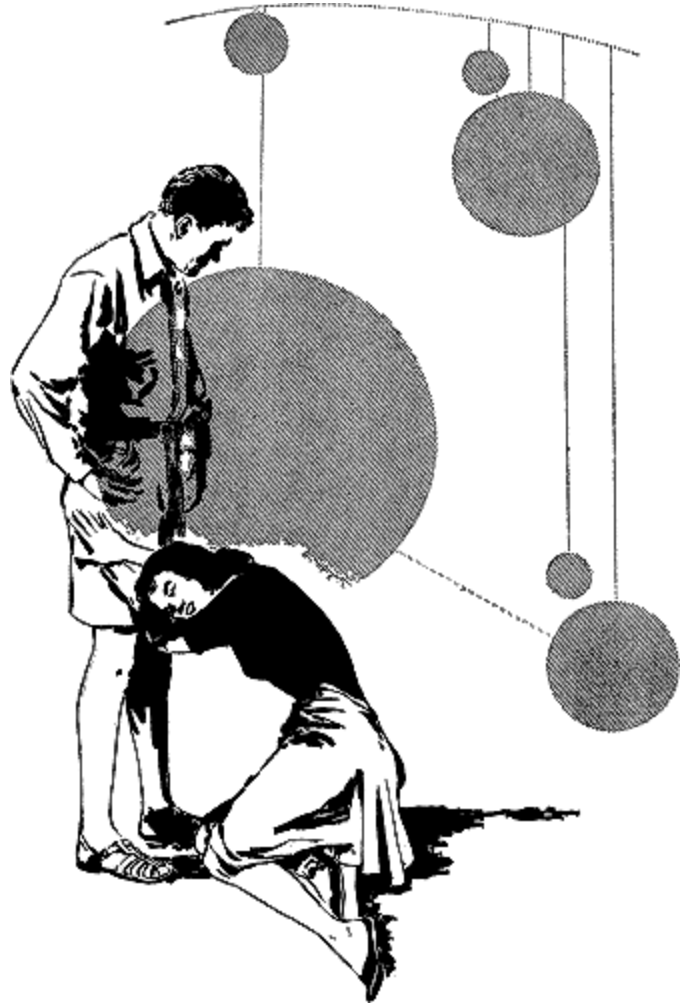
"Probably no brakes," said a heavily accented voice, and another spoke as if on cue, "Probably no insurance, neither."

"Let me through! Oh, please—" The woman's voice was on the edge of hysteria. She came through the crowd like an automaton, not seeing the people she shoved and elbowed aside.

"D.O.A.," said the woman heavily. Her face was no longer twisted with shock, and she was almost pretty again. "D.O.A. Dead on arrival, it means. Oh, Jim, I never knew they said that." Suddenly there were tears in her blue eyes. There had been many tears, now.

"Take it easy, Jean, honey." Jim Blair hoisted his lank six feet out of the old rocker, and crossed the room, running a nervous hand through his cornshuck hair. *She's only thirty*, he thought, *and I'm three years older. That's awfully young to have bred three kids and lost them.* He took her in his arms. "I know how tough it is. It's bad enough for me, and probably worse for you. But at least we're sure they'll never be bomb fodder. And we still have Joanna."

Illustrator: Ernie Barth



She twisted away from him, her voice suddenly bitter. "Don't give me that Pollyanna stuff, Jim. 'Goody, goody, only a broken leg. It might have been your back.' There's no use trying to whitewash it. Our kids, our *own* kids, all gone. Dead." She began to sob. "I wish I were, too."

"Jean, Jean—"

"I don't care. I mean it. Everything bad has happened since Joanna came to live with us."

"Darling, you can't blame the child for a series of accidents."

"I know." She raised her tear-stained face. "But after all— Michael, drowned. Then Steve, falling off the water tower. Now it's Marian." Her fingers gripped his arm tightly. "Jim, each of them was playing alone with Joanna when it happened."

"Accidents, just accidents," he said. It wasn't like Jean, this talk. Almost— His mind shied away from the word, and circled back. Almost paranoid. But Jean was stable, rational, always had been. Still, maybe a little chat with Doctor Holland would be a good idea. Breakdowns *do* happen.

They both turned at the slamming of the screen door. Then came the patter of childish feet on the kitchen linoleum, and Joanna burst into the room.

"Mommy, I want to play with Marian. Why can't I play with Marian?"

Jean put her arm around the girl's thin shoulder. "Darling, you won't be able to play with Marian for—quite a while. You mustn't worry about it now."

"Mommy, she looked just like she was asleep, then they came and took her away." Her lips trembled. "I'm frightened, Mommy."

Jim looked down at the dark eyes, misted now, the straight brown hair, and the little snub nose with its dusting of freckles. *She's all we have left, poor kid, and not even ours, really. Helen's baby.*

He looked up as the battered cuckoo clock on the mantel clicked warningly. "Time for little girls to be in bed, Joanna. Run along now like a good girl, and get washed." Even as he spoke the miniature doors flew open and the caricature of a bird popped out, shrilly announcing the hour. It cuckooed eight times, then bounced back inside. Joanna watched entranced.

"Bed time, darling," said Jean gently. "School tomorrow, remember? And don't forget to brush your teeth."

"I won't. Goodnight, Mommy, goodnight, Daddy." She turned up her face to be kissed, smiled at them, and was gone. They listened to her footsteps on the stairs.

"Jim, I'm sorry about the things I said." Jean's voice was hesitant, a little ashamed. "It *is* hard, though, you know it is— Jim, aren't you listening? After all, you don't have to watch the clock now." Her smile was as labored as the joke.

He smiled back. "I think I'll take a walk, honey. Some fresh air would do me good."

"Jim, don't go. I'd rather not be alone just now."

"Well." He looked at her, keeping his expression blank. "All right, dear. How about some coffee? I could stand another cup." And he thought: *Tomorrow I'll go. I'll talk to Holland tomorrow.*

"Let me get this straight, Jim." Holland's pudgy face was sober, his eyes serious. "You started out by thinking Jean was showing paranoid tendencies, and offhand I'm inclined to agree with you. Overnight you changed your mind and began thinking that maybe, just maybe, she might be right. Honestly, don't you suspect your own reasons for such a quick switch?"

"Sure I do, Bob," Blair said worriedly. "Do you think I haven't beaten out my brains over it? I know the idea's monstrous. But just suppose there *was* a branch of humanity—if you could call it human—living off us unsuspected. A branch that knows how to eliminate—competition—almost by instinct."

"Now hold on a minute, Jim. You've taken Jean's reaction to this last death, plus a random association with a cuckoo clock, and here you are with a perfectly wild hypothesis. You've always been rational and analytical, old man. Surely you can realize that a perfectly normal urge to rationalize Jean's conclusions is making you concur with them against your better judgment."

"Bob—"

"I'm not through, Jim. Just consider how fantastic the whole idea is. Because of a series of accidents you can't accuse a child of planned murder. Nor can you further hypothesize that all orphans are changelings, imbued with an instinct to polish off their foster-siblings."

"Not *all* orphans, Bob. Not planned murder, either. Take it easy. Just some of them. A few of them—different. Growing up. Placing their young with well-to-do families somehow, and then dropping unobtrusively out of the picture. And the young growing up, and always the natural children dying off in one way or another. The changeling inherits, and the process is repeated, step by step. Can you say it's impossible? Do you *know* it's impossible?"

"I wouldn't say impossible, Jim. But I *would* say that your thesis has a remarkably low index of probability. Why don't others suspect, besides you?"

Jim spread his hands hopelessly. "I don't know. Maybe they do. Maybe these creatures—if they do exist—have some means of protection we don't know about."

"You need more than maybes, Jim. What about Joanna Simmons' mother? According to your theories she should have been well off. Was she?"

"No, she wasn't," Jim admitted reluctantly. "She came here and took a job with my outfit. Said she was divorced, and had lived in New York. Then she quit to take a position in California, and we agreed to board Joanna until she got settled. Warrenburg was the town. She was killed there quite horribly, in a terrible auto accident."

"Have you any reason for suspecting skulduggery? Honestly, Jim? Or for labelling her one of your human—er—cuckoos?"

"Only my hunch. We had a newspaper clipping, and a letter from the coroner. We even sent the money for her funeral. But those things could be faked, Bob."

"Give me some evidence that they *were* faked, and I'll be happy to reinspect your views." Holland levered his avoirdupois out of his chair. "In the meantime, relax. Take a trip if you can. Try not to worry."

Jim grinned humorlessly. "Mustn't let myself get excited, eh? Okay, Bob. But if I get hold of any evidence that I think you might accept, I'll be back. The last laugh and all that. Pending developments you take it easy, too. Don't let yourself get overworked. Stay out of the sun. So long now."

"So long, Jim."

It was cool in the Warrenburg city hall, though outside the streets were sizzling.

"Sorry, Mr. Blair," said the stout, motherly woman with the horn-rimmed glasses. "We've no record of a Helen Simmons. Nothing whatever." She closed the file with resolute finality.

Jim stared at her. "Are you sure? There must be something. Mightn't there be a special file for accident cases? She was here in Warrenburg. She died here."

The woman thinned her lips, shook her head. "If we had any information, it'd be right where I looked. There isn't a thing. Have you tried her last address? Maybe they could tell you something. We can't."

"I'll try that next. Thanks a lot."

"Sorry we couldn't help you."

He went out slowly.

872 Maple was a rambling frame house dozing on a wide flower-bordered lot. There was nothing sleepy about the diminutive woman who opened the door to Jim's knock. Snapping black eyes peered at him from a maze of

wrinkles. A veined hand moved swiftly to smooth down the white hair that framed her face.

"Looking for someone, young man?"

"Just information, Mrs.—"

"Collins, and it's Miss. Don't give out information about guests. You a bill collector?"

"No, Miss Collins. As a matter of fact, I'm trying to check up on an old friend I lost track of. Helen Simmons. She lived at this address for a while."

"Sure did. Well, come on in. Mind you, I don't usually do this, Mr.—"

"Blair." Without any fanfare a bill changed hands.

"Mr. Blair. Well, I can't tell you much. Try that green chair for size. What do you want to know?"

Jim studied the toe of his right shoe. His eyes were veiled. "I heard she was hurt, and hard up, and I was worried. My wife and I were friends of hers back east."

"Hurt, hard up? Humph! Not likely, spendin' all her time drivin' that English car around. Takin' trips. I'm not sayin' she didn't mind her manners, though."

"Did she have any close friends?"

"She was chummy with Edith Walton, the girl that works for Doc Mendel. He's county coroner in his spare time. No men. Didn't fool around at all. I'd a known."

Behind Jim's stony eyes the pattern took clearer form, as if a mosaic approached completion. A mosaic of carefully planned events that totalled

horror. He shivered as the outlines of his hunch filled in. Helen—what creatures were these? Helen—not dead, not poor,—carefully planting ostensible proof of her death and going on to a new role, a new life, in London or Paris or Rome. A free, untrammelled life. And her child—if child was the word—in his home, repeating the pattern. Eliminating competition as her mother undoubtedly had done. The competition—his and Jean's children! Changeling, changeling— No, not that. Incubus! He shivered again.

"Rabbits on your grave, Mr. Blair?"

He looked up slowly. "Sorry. I was just wondering. Did Miss Simmons have a job while she was here?"

"No, she didn't. One thing she did do was rent a place. Used to be Blands Hardware. Paid a month's rent, too. Said some friends of hers were plannin' to open a mortuary. Seemed like a funny way for people to do business, but then, no affair of mine."

Funny? No, not funny at all, but icily, eerily logical. There had to be an undertaking parlor where he could send the funeral expenses. He wondered if Helen had laughed when she opened the letter. Everyone his, or her, own undertaker. And the carefully cultivated friend in the coroner's office. For stationery.

He got to his feet. "Thanks a lot, Miss Collins. You've been a great deal of help." He almost smiled as he asked, "I don't suppose she left a forwarding address?"

The old head shook decisively. "Not a thing. Just packed and left, one Monday morning."

All the loose ends tied up tight on a Monday morning. Nothing to cause suspicion. Nothing to worry about. Only a woman's almost paranoid hysteria,—and a glance at a clock. Not very much to unmask—incubus. And what could he do? What *could* he do? Start talking and land in an institution? Well, there was one thing.

"Thanks again, Miss Collins."

He went out.

Swanson didn't look like the general conception of a small-town newspaperman. One knew instinctively that his beard wouldn't have been tobacco-stained even if he'd cared to grow one. And he didn't have a bottle of bourbon in the file marked Miscellaneous, or if he did he didn't bring it out.

"That never came from my paper," he said precisely. He handed the clipping back to Jim. "We don't use that type, for one thing. For another, Miss Simmons, so far as I know, wasn't killed here or anywhere else."

"You knew her?"

"I knew of her. I never met her."

"What about this report of her death?"

Swanson shrugged; tented manicured fingers. "It's a hoax. Any job printing shop with a Linotype could do it. In all likelihood it was some place in San Francisco. That's closest. It would be very difficult to check." His curiosity was showing.

"I see. Well, thanks for your time and trouble, Mr. Swanson."

"Not at all. Sorry I couldn't be of more help."

One thing to do. One thing that must be done.

Motors over the mountains. And riding with them, the numb resolve. Motors over the salt pans, the wheat lands, the corn belt.

The stewardess stops again. "Coffee, sir? A sandwich, perhaps?"

"I beg your— Oh, no. No, thanks."

She watches him covertly, uneasily, longing for the end of the run.

Motors in the night.

And the dull determination growing, strengthening.

The airport, baggage, the ancient taxi with the piston slap, and at last the dark, familiar street.

"Jim, you're back! Oh, Jim, darling. Next time they send you west I'm going too. I am!"

"Okay, Jean, sure. Why not?"

"What's the matter, dear? Oh, you're tired, of course. I should have known. Sit down, Jim. Let me get you a drink."

"In a minute, Jean." Do it now *now* NOW! "Where's Joanna?"

"She's in bed. Hours ago. Jim, has something—?"

"Nothing, dear. I just want to look in on her. And freshen up a bit, of course."

"Jim—"

He smoothed away the worried frown with his forefinger.

"In a minute, dear."

She smiled uncertainly. "Hurry back, Jim."

The stairs unwind irrevocably, slow motion in a nightmare. The bedroom door opens, the hall light dim on the bed and the child's face. Incubus in the half dark.

For a moment Jim remembered wondering somewhere, sometime, what strange powers of protection might be implicit in such a creature. As the thought came into his mind, Joanna stirred. She opened her eyes and looked at him.

He took one step toward the bed.

The little girl eyes over their dusting of freckles slitted. Then they opened wide, became two glowing golden lakes that grew, and grew—

There was the feeling of a great soundless explosion in his mind. Waves of cool burning in his brain, churning and bubbling in every unknown corner, every cranny. Here and there a cell, or a group of cells, blanked out, the complex molecules reverting, becoming new again. Ready for fresh punch marks. Synapses shorted with soundless cold fire, and waited in timeless stasis for rechannelling. The waves frothed, became ripples, were gone. He stood unmoving.

What was it he was supposed to do? Let's see— Tuck Joanna's blanket around her. But she was covered up snugly. Sleeping soundly, too, and for a few seconds he'd thought she was awake. And Jean was waiting downstairs, Jean and a cool drink.

Oh, yes, stop in the bathroom.

The stairs wind up again. It is good to be with one's family, relaxed in the well known chair. Not a worry in the world.

He sat there, his mind at ease, not caring much about anything. He didn't even look up when the clock on the mantel whirred, and the ridiculous bird popped out of its nest to herald a new day.



Transcriber's Note:

This etext was produced from *Amazing Stories* March 1954. Extensive research did not uncover any evidence that the U.S. copyright on this publication was renewed. Minor spelling and typographical errors have been corrected without note.

*** END OF THE PROJECT GUTENBERG EBOOK THE CUCKOO
CLOCK ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.



[back](#)